

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
OMALLEY HARRIS,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JORGE
RAMOS, Tax No. 964719, POLICE OFFICER LUIS
SANDRES, Tax No. 964752, POLICE OFFICER
CHRISTOPHER FRANCIS, Tax No. 965108, POLICE
OFFICER DELINDA GIRALDO, Tax No. 953911, and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 20, 2023

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
DETECTIVE JORGE RAMOS, Tax No. 964719, Gun Violence Suppression Division, Zone 1
POLICE OFFICER LUIS SANDRES, Tax No. 964752, PSA 3, 25 Central Ave, Brooklyn, NY 11206
POLICE OFFICER CHRISTOPHER FRANCIS, Tax No. 965108, PSA 3, 25 Central Ave, Brooklyn, NY 11206
POLICE OFFICER DELINDA GIRALDO, Tax No. 953911, PSA 3, 25 Central Ave, Brooklyn, NY 11206

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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OMALLEY HARRIS,

Plaintiff,

-against-

INDEX NO.:**VERIFIED COMPLAINT**THE CITY OF NEW YORK, DETECTIVE JORGE
RAMOS, Tax No. 964719, POLICE OFFICER LUIS
SANDRES, Tax No. 964752, POLICE OFFICER
CHRISTOPHER FRANCIS, Tax No. 965108, POLICE
OFFICER DELINDA GIRALDO, Tax No. 953911, and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),**JURY TRIAL DEMANDED**

Defendants.

----- X

Plaintiff OMALLEY HARRIS, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on October 20, 2020, at approximately 9:00 pm plaintiff was a lawful passenger in a vehicle that stopped to drop one of the other passengers off at their home, in front of 60 Carlton Ave, Brooklyn, at which time the defendants unlawfully stopped, questioned, frisked, searched, unlawfully handcuffed, and falsely arrested plaintiff, without probable cause or legal justification. The defendants transported plaintiff to the 88th Precinct and then to the PSA 3 Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued. The defendant police officers maliciously prosecuted plaintiff and denied him the right to due process. The officers provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes. The false allegations made by the officers formed the basis for the crimes plaintiff was charged with committing at arraignment, without probable cause. Plaintiff was arraigned in Kings County Criminal Court on October 21, 2020, at approximately 9:00 pm, approximately 24 hours after plaintiff was initially arrested and falsely and maliciously charged with Obstructing Governmental

Administration in the Second Degree, Resisting Arrest, and Unlawful Possession of Marijuana in the Second Degree. At arraignment, plaintiff was charged with committing crimes he did not commit and that the police officers lacked probable cause to accuse him of committing, and plaintiff was released from custody on his own recognizance and given a date to return to court to address the charges. Plaintiff was required to return to Court on approximately 5 occasions and endure a malicious criminal prosecution that lasted approximately five months before all charges were dismissed and sealed in their entirety on March 11, 2021, after the Court granted a motion to dismiss the charges. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, maliciously prosecuted plaintiff, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff OMALLEY HARRIS is a resident of the state of New York.
3. Defendant DETECTIVE JORGE RAMOS, Tax No. 964719, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE JORGE RAMOS, Tax No. 964719, was at all times relevant herein, assigned to the PSA3 Precinct, and is presently assigned to the Gun Violence Suppression Division, Zone 1.
5. Defendant DETECTIVE JORGE RAMOS, Tax No. 964719, is being sued in his individual and official capacity.
6. Defendant POLICE OFFICER LUIS SANDRES, Tax No. 964752, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant POLICE OFFICER LUIS SANDRES, Tax No. 964752, was at all times relevant herein, assigned to the PSA 3 Precinct.
8. Defendant POLICE OFFICER LUIS SANDRES, Tax No. 964752, is being sued in his individual and official capacity.
9. Defendant POLICE OFFICER CHRISTOPHER FRANCIS, Tax No. 965108, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Defendant POLICE OFFICER CHRISTOPHER FRANCIS, Tax No. 965108, was at all times relevant herein, assigned to the PSA 3 Precinct.
11. Defendant POLICE OFFICER CHRISTOPHER FRANCIS, Tax No. 965108, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER DELINDA GIRALDO, Tax No. 953911, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER DELINDA GIRALDO, Tax No. 953911, was at all times relevant herein, assigned to the PSA 3 Precinct.

14. Defendant POLICE OFFICER DELINDA GIRALDO, Tax No. 953911, is being sued in his individual and official capacity.

15. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. By way of background, in the weeks leading up to the incident that occurred on October 20, 2020, which is the subject of this lawsuit, the defendant police officers harassed plaintiff on several occasions, without any legal basis to stop and harass him.

22. Additionally, the defendant police officers in this case have a reputation in the community where plaintiff was stopped, as being problematic officers who routinely harass and violate the rights of African American males around plaintiff's age.

23. The defendant police officers have continued to harass plaintiff, his friends, and many other individuals in the community since the October 20, 2020.

24. According to the website 50-a.org, which tracks complaints of misconduct made against New York City Police Department Officers, defendant Police Officer Christopher Francis presently has the most allegations of misconduct made against him to the Civilian Complaint Review Board of any police officer assigned to the PSA 3 command.

25. Additionally, according to the 50-a.org website defendant Police Officer Francis has received Charges and Specifications from the NYPD on multiple occasions after the NYPD determined that he engaged in misconduct, and Police Officer Francis presently has two Administrative Prosecution Decisions pending regarding how he will be disciplined for engaging in misconduct.

26. According to the 50-a.org website defendant Police Officer Francis has also received two Command Discipline As and one Command Discipline B for engaging in misconduct.

27. Additionally, there was previously a Facebook page set up by someone who lives in the community patrolled by Police Officer Francis wherein members of the public freely posted complaints about Police Officer Christopher Francis.

28. The posts on the Facebook page from members of the community demonstrate that Police Officer Christopher Francis is an officer who is known to violate the Constitutional Rights of members of the public.

29. The Facebook Page contains a photo of Police Officer Francis in his police uniform flashing gang signs to someone over his cell phone. Underneath the photo, one of the comments states that the officer is a part time gang banger who likes to harass a lot of black men in neighborhoods in Brooklyn.

30. In one of the Facebook posts about Police Officer Francis, the writer pleads for someone to do something about this problematic officer.

31. Another post accused Police Officer Francis of "f**king with [them] all day..."

32. Writers on the Facebook page state that Officer Francis is unsafe and numerous people post examples of when Officer Francis unlawfully stopped them and unlawfully pulled them out of their vehicles for no reason.

33. Defendant Police Officer Delinda Giraldo also has a documented history of engaging in police misconduct and engaging in racist behavior.

34. According to several articles written about defendant Police Officer Giraldo in the New York Daily News, she was suspended by the NYPD without pay after she was caught in an Instagram video, she posted repeatedly encouraging her 2-year-old niece to use the N-word.

35. According to the articles, the toddler video shows Giraldo repeatedly telling her niece to use the racial slur. "Say it again," she urged. "Say it again."

36. The articles further state that in one of five Instagram clips that were posted, Giraldo pushed the niece to say the N-word and even as Giraldo's sister told her daughter to stop.

37. The articles state that in a second video, Giraldo, 29, said using the N-word is "not that serious."

38. The articles state that defendant Police Officer Delinda Giraldo was temporarily suspended for the Instagram posts, but she was ultimately reinstated to normal duties.

39. The articles state that at the time she was suspended for engaging in this behavior Officer Giraldo was already on modified duty, assigned to monitor NYCHA security cameras in Queens, because she and her ex-boyfriend, Police Officer Michael Martinez, were in the middle of a nasty legal battle, with Officer Martinez claiming Giraldo made several bogus domestic violence claims against him.

40. The articles further state that Officer Giraldo also sued the NYPD, claiming she was the target of unwanted advances from male officers and that she received poor evaluations and undesirable assignments because she did not accept the advances.

41. Despite Police Officer Giraldo's documented history of exhibiting racist behavior and receiving poor evaluations as a police officer, upon information and belief the NTYPD continues to allow her to patrol the streets of New York City in a neighborhood with residents who are a majority African Americans.

42. Similarly, upon information and belief, despite the fact that defendant Christopher Francis' repeatedly engages in misconduct and violated the Constitutional Rights of members of the public, the New York City Police Department continues to permit him to patrol the streets of New York City even though the City of new York and the NYPD are on notice that he is a police officer who has abused his authority as a police officer violated the Constitutional Rights of members of the community he patrols

43. On or about October 20, 2020, at approximately 9:00 pm plaintiff was a lawful passenger in a vehicle that was dropping off another passenger at his home, in front of 60 Carlton Ave, Brooklyn.

44. After the other passenger exited the vehicle, he was approached by the defendant police officers and was unlawfully ordered to get back in the vehicle.

45. Then the defendants approached the vehicle and ordered everyone in the vehicle to exit the vehicle.

46. The defendants refused to tell plaintiff why they were stopping and seizing him or why they wanted everyone to exit the vehicle.

47. The defendant police officers had absolutely no factual or legal basis to stop, seize or search plaintiff.

48. Plaintiff repeatedly asked the officers why they stopped him and why they wanted him to exit the vehicle and he began to argue with the officers when they refused to answer his questions.

49. When members of the community began to observe that the defendant police officers were violating the Constitutional rights of plaintiff and his friends, the officers proceeded to unlawfully handcuff and falsely arrest plaintiff, without probable cause or legal justification.

50. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers have an objective factual basis to believe plaintiff violated the law or committed a crime.

51. At no time relevant herein did the officers recover any illegal drugs, weapons, or contraband from plaintiff, from his friends or from the vehicle.

52. The officers unlawfully seized the vehicle and drove it back to the precinct whereat the officers conducted an unlawful warrantless search of the vehicle and classified the search as an "inventory search," for the purpose of trying to make the search of the vehicle appear legal.

53. The defendant officers unlawfully transported plaintiff against his will to the 88th Precinct, and then to the PSA3 precinct because the 88th Precinct was too crowded.

54. Plaintiff was unlawfully searched, fingerprinted, photographed, and interrogated at the PSA3 precinct, and he was detained in a filthy holding cell for many hours.

55. At no time did the defendant officers tell plaintiff their basis for arresting him or what crime he was being charged with committing.

56. Plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued.

57. The officers provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes.

58. The false allegations made by the officers formed the basis for the crimes plaintiff was charged with committing at arraignment, without probable cause.

59. Plaintiff was arraigned in Kings County Criminal Court on October 21, 2020, at approximately 9:00 pm, approximately 24 hours after plaintiff was initially arrested and charged with Obstructing Governmental Administration in the Second Degree, Resisting Arrest, and Unlawful Possession of Marijuana in the Second Degree.

60. At no time relevant herein was there any marijuana present in plaintiff's possession, custody, or control or anywhere else in the vehicle.

61. The defendant police officers falsely alleged that they recovered marijuana from the center console of the vehicle, and they fabricated that allegation to justify why they stopped plaintiff, ordered plaintiff to exit his vehicle, and arrested plaintiff.

62. The defendant officers did not vouch for any marijuana allegedly recovered from the vehicle, nor were there any field tests conducted on a substance believed to be marijuana that was allegedly recovered from the vehicle.

63. The officers lacked any legal basis to order plaintiff to exit the vehicle or search him.

64. At no time relevant herein did plaintiff commit the crimes of Obstructing Governmental Administration in the Second Degree, Resisting Arrest, and Unlawful Possession of Marijuana in the Second Degree.

65. At arraignment, plaintiff was charged with committing crimes he did not commit and that the police officers lacked probable cause to accuse him of committing, and plaintiff was released from custody on his own recognizance and given a date to return to court to address the charges.

66. Plaintiff was required to return to Court on approximately 5 occasions and endure a malicious criminal prosecution that lasted approximately five months before all charges were dismissed and sealed in their entirety on March 11, 2021, after the Court granted a motion to dismiss the charges.

67. The criminal prosecution terminated in plaintiff's favor.

68. At no time relevant herein did plaintiff commit a crime or violate the law, nor did the police officers possess objective facts to establish probable cause to believe he violated the law or committed a crime.

69. At no time relevant herein did defendants recover any illegal drugs, weapons or contraband from the possession, custody, or control of plaintiff.

70. At no time relevant herein did the police officers possess objective facts that established reasonable suspicion or probable cause to believe plaintiff committed a crime or violated the law in any manner.

71. The defendants did not possess probable cause or any legal justification to arrest plaintiff or charge him with committing a crime.

72. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

73. Several of the defendant police officers involved in plaintiff's arrest have histories of being disciplined for misconduct including for fabricating allegations against members of the public.

74. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

75. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

76. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest and false imprisonment, and for subjecting plaintiff to the use of excessive force because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search, falsely arrest and subject members of the public to the use of excessive force, without probable cause.

77. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

78. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

79. The unlawful stop, question, frisk, search, false arrest and false imprisonment, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

80. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully seized and searched plaintiff's vehicle, unlawfully stopped, questioned, frisked, searched, seized, maliciously prosecuted, falsely arrested, and falsely imprisoned plaintiff, without probable cause, and denied plaintiff the right to due process in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

82. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

84. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

87. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. The illegal search of plaintiff's person and vehicle employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

89. Defendants lacked probable cause to search plaintiff and/or plaintiff's vehicle.

90. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

93. Plaintiff repeats and realleges paragraphs 1 through 92 as if fully set forth herein.

94. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

95. Defendants commenced and continued criminal proceedings against plaintiff.

96. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

97. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

98. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Due Process/ Right to a Fair Trial

100. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 99 with the same force and effect as if fully set forth herein.

101. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

102. Defendants filled out false and misleading police reports and a summons and forwarded them to the Kings County Criminal Court.

103. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

104. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

106. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

107. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

108. Defendants failed to intervene to prevent the unlawful conduct described herein.

109. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

110. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth and Fourteenth Amendments to the United States Constitution

111. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. Plaintiff was unlawfully searched, denied the right to due process, maliciously prosecuted, and falsely arrested without probable cause and without an objective

factual legal basis to seize, and arrest plaintiff pursuant to an unconstitutional policy and practice of the NYPD that it is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

113. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

114. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, and Fourteenth Amendment Rights of members of the public.

115. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

116. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

117. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

118. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

119. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

120. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

121. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, and Fourteenth Amendments to the United States Constitution.

122. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

123. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff OMALLEY HARRIS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 20, 2023

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
October 20, 2023

David Hazan

DAVID M. HAZAN